Federal Decree by Law No. (6) of 2007
Regarding the Establishment and Regulation of the National Center of Meteorology (NCM)

We, Khalifa Bin Zayed Al Nahyan, President of the United Arab Emirates

- Having reviewed the Constitution;
- Federal Law No. (1) of 1972 Regarding the Competences of Ministries and the Powers of Ministers, as amended;
- Penal Code promulgated by Federal Law No. (3) of 1987, as amended;
- Federal Law No. (4) of 1996 Regarding the Establishment of the General Civil Aviation Authority,
- Federal Decree by Law No. (4) of 2004 Regarding the Establishment and Regulation of the Ministry of Presidential Affairs,
- Decision of the Minister of Presidential Affairs No. (2) of 2004 Regarding the Organizational Structure of the Ministry of Presidential Affairs, as amended;
- Decision of the Minister of Presidential Affairs No. (16) of 2007 Regarding the Establishment of the National Center for Meteorology and Seismology, and
- Upon the proposal of the Minister of Presidential Affairs and the approval of the Cabinet,

Hereby promulgate the following Decree by Law:

Definitions

Article (1)

For the purposes of implementing the provisions of this Decree by Law, the following terms and expressions shall have the meanings assigned to each of them, unless the context otherwise requires:

State	:	The United Arab Emirates.
Concerned Authorities	:	All Federal or Local Entities in the member Emirates of the Federation concerned with meteorological and seismic affairs.

Chairman of the Court	:	The Chairman of the Presidential Court.
Center	:	The National Center of Meteorology established pursuant to the provisions of this Decree by Law.
President of the Center	:	The President of the National Center of Meteorology.
Director	:	The Director of the Center.
Meteorological Services	:	Services that include the provision of public meteorological information and services, including marine, agricultural, hydrological, air quality, weather, and aviation meteorological services, together with logistical services related to the competences of the Center, for the purpose of supporting the safety, economic viability, and efficiency of land, maritime, and air transport, as well as public works, agriculture, and other sectors.
Seismic Engineering Services	:	Services that include seismic monitoring and tsunami early warning services, including ground acceleration studies, expected seismic intensity studies, monitoring of crustal movements, and site response to seismic waves in support of the development of building codes.

Article (2)

The National Center for Meteorology shall be as a unit directly affiliated with the Chairman of the Court. The Center's head office shall be in the city of Abu Dhabi, and the President may establish branches of the Center within and outside the city of Abu Dhabi.

Article (3)

The Center aims to unify the source of meteorological and seismic information, monitor changes occurring in the atmosphere, and provide Meteorological Services and Seismic Engineering services to all sectors in accordance with the laws and regulations applicable in the State, in addition to exchanging data and information related to this objective at the

regional and international levels, and keeping pace with scientific developments and conducting studies and researches within the scope of the Center's competence.

Article (4)

The Center shall have all competences related to the provision of Meteorological Services and Seismic Engineering Services, and to the regulation and oversight of Meteorological and Seismological Services of all matters related to meteorological and seismic services and any activities connected therewith, which were previously exercised by the Concerned Authorities. The Center shall exercise, to the exclusion of all others, all powers necessary in this regard pursuant to the decisions issued by the Chairman of the Court, upon the recommendation of the President of the Center and in coordination with the Concerned Authorities.

The Management of the Center

Article (5)

The Center shall have a President, whose grade, financial remuneration, and manner of treatment shall be determined by the Decree appointing them. The President shall exercise the powers vested therein pursuant to the provisions of this Decree by Law, the relevant laws, and the legislation in force at the Center.

Article (6)

The President shall be the authority responsible for drawing up the general policy of the Center and shall exercise the powers necessary to achieve its objectives within the limits prescribed by this Decree by Law. In particular, the President shall have the following powers:

1. To approve the general policy governing the conduct of the Center in achieving its objectives, and to follow up its implementation after its approval by the Chairman of the Court.
2. To approve the draft annual budget of the Center in accordance with the appropriations allocated thereto within the budget of the Presidential Court, provided that it shall be approved by the Chairman of the Court.

3. To approve the draft organizational structure of the Center, which shall be approved and promulgated by a decision of the Chairman of the Court.
4. To approve the draft Human Resources Regulation for the Center's employees, its Financial Regulation, and its internal regulations and systems, which shall be approved and promulgated by a decision of the Chairman of the Court.
5. To approve draft contracts to be concluded with individuals, authorities, and organizations, whether within or outside the State, within the limits prescribed by the Center's internal regulations and systems.
6. To approve the establishment of projects and participation in companies related to the competences of the Center, in accordance with the legislation and regulations in force, provided that such approval shall be endorsed by the Chairman of the Court.
7. To submit a semi-annual report on all aspects of the Center's activities to the Chairman of the Court.
8. To consider the matters referred thereto by the Chairman of the Court.
9. Any other duties assigned thereto by the Cabinet or the Chairman of the Court.

Article (7)

1. The Center shall have a **Director**, who shall be its legal representative. The Director's employment grade and financial remuneration shall be determined by the Decree or decision appointing them. The Director shall be responsible for the management of the Center and the conduct of its affairs, within the limits prescribed by this Decree by Law and the Center's regulations and systems. In particular, the Director shall exercise the following competences:
    a. To undertake all financial and administrative acts within the limits prescribed by the regulations and systems in force at the Center.
    b. To prepare draft policies and plans necessary to achieve the objectives of the Center and submit them to the President.
    c. To establish the programs necessary to implement the approved policies and plans, and to submit periodic reports to the President regarding the implementation of such policies and plans.

d. To appoint employees to the positions of the Center in accordance with the provisions of the Human Resources Regulation.
e. To prepare the draft annual budget of the Center and its final accounts.
f. To approve the engagement of experts and technicians to participate in the activities of the Center and determine their financial remuneration, within the limits of the appropriations allocated for such purpose and in accordance with the rules established by the President in this regard.
g. Any other duties assigned thereto by the President of the Center or the Chairman of the Court.

2. The Chairman of the Court may appoint a Deputy Director of the Center to assist the Director in the management of the Center and the conduct of its affairs. The decision appointing the Deputy Director shall determine their powers, employment grade, and financial remuneration. The Director may delegate some of their competences to the Deputy Director.

Financial Affairs

Article (8)

The Director shall prepare the draft financial appropriations necessary for the Center and submit the same to the President for approval prior to its adoption by the Chairman of the Court.

Article (9)

The revenues of the Center shall consist of:

1. The annual appropriations allocated to the Center from the Ministry's budget.
2. The fees and other revenues collected by the Center in accordance with the provisions of this Decree by Law, as determined by decisions issued by the Chairman of the Court upon the recommendation of the President of the Center.
3. Unconditional gifts, grants, and bequests approved by the Chairman of the Court upon the recommendation of the President of the Center.
4. Returns generated from projects in which the Center invests its funds.

Article (10)

Committees shall be formed by a decision of the Chairman of the Court, in coordination with the Concerned Authorities, to conduct an inventory of all fixed and movable assets designated for transfer to the Center.

Article (11)

1. The Center shall have one or more auditors appointed by the President for a term of one renewable year. Such auditor(s) shall be among the accredited auditors in the State. The President shall determine the remuneration of the auditor(s).
2. The auditor shall submit periodic reports to the Chairman of the Court.

Article (12)

The employees whom the Chairman of the Court, upon the recommendation of the President of the Center, decides to transfer from the Concerned Authorities to the Center shall be transferred thereto with their same grades and financial entitlements, provided that their employment status shall be regularized in accordance with the regulations and systems applicable in the Center.

General Provisions

Article (13)

Without prejudice to any more severe penalty provided for under any other law, anyone who commits any of the following acts shall be punished by imprisonment for a period not less than (2) two years and a fine of not less than fifty thousand dirhams, or by either of these penalties:

1. Providing meteorological or weather-related information or services to any foreign entity with the intent of assisting it in undermining the national security of the State.
2. Providing meteorological and seismic services at the level of the State, of whatever type, including monitoring, issuing, or publishing reports and studies relating to weather and

climate changes and meteorological and seismic warnings, regardless of their nature, whether written, audio, or visual, and by any means whatsoever, including publication on social media platforms, where such acts are carried out other than through the Center or without obtaining its prior approval.

3. Establishing meteorological observatories or operating meteorological or seismic monitoring equipment without submitting them to the Center, verifying the technical specifications of such equipment and their compliance with international standards, and obtaining the Center's prior approval.

Article (14)

The Chairman of the Court shall, upon the recommendation of the President of the Center, issue the necessary decisions for the implementation of the provisions of this Decree by Law.

Article (15)

The regulations and systems applicable in the Center in respect to the financial affairs, human resources, and other systems shall continue to apply until the issuance of the Center's regulations and systems in accordance with the provisions of Article (6) of this Decree by Law.

Article (16)

The Decision of the Chairman of the Court of Presidential Affairs No. (16) of 2007 Regarding the Establishment of the National Center for Meteorology and Seismology is hereby repealed.

Article (17)

Any provision or text that contradicts or conflicts with the provisions of this Decree by Law is hereby repealed.

Article (18)

This Decree by Law shall be published in the Official Gazette and shall enter into force from the date of its publication.

Khalifa bin Zayed Al Nahyan

President of the United Arab Emirates

Issued by us at the Presidential Palace in Abu Dhabi:
On: 3 Dhul Qaeda 1428 A.H.
Corresponding to: 13 November 2007 A.D.